

23STCV11457 23STCV11457

County: los-angeles

Division: Civil Law and Motion

Department: 406

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Case Number: 23STCV11457 Hearing Date: August 5, 2026 Dept: 406

KENNAN TILLMAN,

Plaintiff,

v.

CHA HOLLYWOOD MEDICAL
CENTER,

Defendant.

Case No.: 23STCV11457

Hearing Date: August 5, 2026

[TENTATIVE]

order RE:

defendant's motion to bifurcate

BACKGROUND

On May 22, 2023, Plaintiff Kennan

Tillman filed this action against CHA Hollywood Medical Center. Plaintiff filed the operative First Amended Complaint on July 31, 2023, alleging (1) wrongful termination in violation of public policy based on Labor Code section 1102.5, (2) blacklisting in violation of Labor Code section 1050, and (3) intentional infliction of emotional distress.

On June 18, 2026, Defendant filed the instant motion to bifurcate punitive damages. Plaintiff has not filed an opposition.

LEGAL STANDARD

“The court may, when the convenience of witnesses, the ends of justice, or the economy and efficiency of handling the litigation would be promoted thereby, on motion of a party, after notice and hearing, make an order . . . that the trial of any issue or any part thereof shall precede the trial of any other issue or any part thereof in the case” (Code Civ. Proc., § 598.) “The court, in furtherance of convenience or to avoid prejudice, or when separate trials will be conducive to expedition and economy, may order a separate trial of any cause of action, including a cause of action asserted in a cross-complaint, or of any separate issue or of any number of causes of action or issues” (Id., § 1048, subd. (b).) “It is within the discretion of the court to bifurcate issues or order separate trials of actions . . . and to determine the order in which those issues are to be decided.” (Royal Surplus Lines Ins. Co. v. Ranger Ins. Co. (2002) 100 Cal.App.4th 193, 205.)

DISCUSSION

“The court shall, on application of any defendant, preclude the admission of evidence of that defendant’s profits or financial condition until after the trier of fact returns a verdict for plaintiff awarding actual damages and finds that a defendant is guilty of malice, oppression, or fraud in accordance with Section 3294.” (Civ. Code, § 3295(d).) “[T]his section means that all evidence relating to the amount of punitive damages is to be offered in the second phase, while the determination whether the plaintiff is entitled to punitive damages (i.e., whether the defendant is guilty of malice, fraud or oppression) is decided in the first phase along with compensatory damages.” (Holdgrafer v. Unocal Corp. (2008) 160 Cal.App.4th 907, 919, emphasis in original.) In other words, bifurcation of punitive damages is mandatory. Therefore, the issue of punitive damages will be severed into a second phase.

CONCLUSION

Defendant's

motion to bifurcate punitive damages is GRANTED.